

Chief Justice's Court

Case :- WRIT - C No. - 24936 of 2023

Petitioner :- Zamir Akhatar

Respondent :- Managing Director Purvanchal Vidyut Vitran
Nigam And Another

Counsel for Petitioner :- Girish Singh,Ashish Kumar

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Pritinker Diwaker,Chief Justice

Hon'ble Ashutosh Srivastava,J.

Counsel for the petitioner fairly submits that he has an alternative remedy of filing an appeal under Section 127 of the Electricity Supply Code, 2005. He, however, submits that as the petitioner was prosecuting this writ petition, the limitation of filing the appeal has expired and the appellate authority be directed to decide the case ignoring the point of limitation.

Counsel for the respondent has no objection to the same.

The petition is **disposed of** permitting the petitioner to file the appeal within two weeks from today. In the eventuality of doing so, the authority is directed to decide the same on merits ignoring the point of limitation.

Order Date:- 31.7.2023

CS/-

(Ashutosh Srivastava,J.)

(Pritinker Diwaker, C.J.)